

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

WAN HAI LINES, LTD. AND WAN HAI LINES (USA) LTD. -
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-16

Served: March 22, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER AMENDING THE SCHEDULING ORDER

On March 21, 2022, Respondents filed a motion to amend the scheduling order, seeking a two-week extension of the deadlines to allow additional time to complete depositions and discovery. Motion at 1. Respondents note that several of the deponents were also deposed in Docket No. 21-09 and assert that “the parties have sought to balance the need for expeditious conduct of this proceeding with the burden placed on the deponents by testifying and producing documents in multiple proceedings.” Motion at 1.

The motion states that the Bureau of Enforcement (“BOE”) has no objections to the requested extension and “BOE notes that in addition to some deponents also being witnesses in 21-09, several are witnesses who are not parties to this litigation, and BOE shares counsel’s concern with regard to overburdening deponents.” Motion at 2.

The concern with not overburdening non-party witnesses is legitimate and the requested extension is reasonable. It will, however, limit the time available to draft the initial decision for this proceeding. Therefore, a deadline is added for the parties to submit stipulations of fact and a joint appendix. The joint appendix should include any documents that the parties agree should be part of the record. The parties’ individual appendices, submitted with their briefs, will supplement, but not duplicate, the documents submitted in the joint appendix. Exhibits submitted in the appendices must have readable date stamps and the appendices must contain a table of contents. In addition, due to the expedited nature of this proceeding, no further extensions will be permitted.

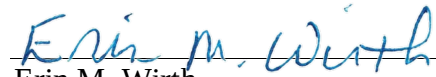
The parties are hereby **ORDERED** to abide by the following schedule:

April 4, 2022	Depositions to conclude;
April 7, 2022	Last day to serve discovery requests;
April 14, 2022	End of discovery;
April 25, 2022	Parties submit joint stipulations of facts and joint appendix;

May 5, 2022 BOE's brief, findings of fact, and appendix deadline;

May 26, 2022 Respondents' brief, findings of fact, appendix, and response deadline;

June 3, 2022 BOE's reply brief deadline.


Erin M. Wirth
Chief Administrative Law Judge